

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of October 15, 2025 ("Effective Date"), by and between Acme Corporation, a Delaware corporation ("Disclosing Party"), and InnovateTech Solutions LLC, a California limited liability company ("Receiving Party").

1. PURPOSE

The parties wish to explore a potential business relationship concerning enterprise software integration ("Purpose"). In connection with the Purpose, each party may disclose to the other certain confidential and proprietary technical and business information.

2. CONFIDENTIAL INFORMATION

"Confidential Information" means any non-public information disclosed by one party ("Disclosing Party") to the other party ("Receiving Party"), whether orally, visually, or in writing, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

3. OBLIGATIONS OF RECEIVING PARTY

The Receiving Party agrees to:

- (a) Protect and safeguard the Confidential Information using the same degree of care it uses to protect its own confidential information of like nature, but no less than a reasonable degree of care;
- (b) Not use any Confidential Information for any purpose outside the scope of the Purpose;
- (c) Disclose Confidential Information only to its employees, contractors, and legal advisors who need to know such information for the Purpose and who are bound by confidentiality obligations at least as restrictive as those contained herein.

4. EXCLUSIONS

Confidential Information does not include information that:

- (a) Is or becomes publicly known through no breach of this Agreement by Receiving Party;
- (b) Was already known to Receiving Party prior to disclosure without confidentiality obligation;
- (c) Is independently developed by Receiving Party without reference to or reliance upon Disclosing Party's Confidential Information.

5. TERM AND TERMINATION

This Agreement shall commence on the Effective Date and remain in effect for a period of two (2) years. Either party may terminate this Agreement at any time upon thirty (30) days' written notice to the other party. The confidentiality obligations under Section 3 shall survive for a period of three (3) years following termination or expiration of this Agreement.

6. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of law principles. Any legal action or proceeding arising under this Agreement shall be brought exclusively in the state or federal courts located in Wilmington, Delaware.

7. MISCELLANEOUS

This Agreement constitutes the entire agreement between the parties regarding non-disclosure. No amendment or modification of this Agreement shall be binding unless made in writing and signed by authorized representatives of both parties.

IN WITNESS WHEREOF, the parties have executed this Mutual Non-Disclosure Agreement as of the Effective Date.

ACME CORPORATION

By: John Doe, Chief Executive Officer

INNOVATE TECH SOLUTIONS LLC

By: Jane Smith, Managing Director